RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

He Passes Them Over One by One: Fragmented Sins & Losing Olam HaBa

Hilchot Teshuvah Perek 3

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 3, Halachot 5–14 (end of the chapter)

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 8 October 2024 (Aseret Yemei Teshuvah 5785)

These notes are based on the Sofer.ai transcript of the recording.

Recap

Chapter	Theme
1	What teshuvah is, in the Rambam's understanding
2	Viduy: getting confession right, "very relevant for Yom Kippur"
3 (last week, just before Rosh Hashanah)	**Identity**: Rosh Hashanah judges **our value system**, not individual actions

Chapter 3 has two sections: **Halachot 1–5**, the "weighing," and **Halachot 6–14**, those with no share in the World to Come.

Part 1: The First and Second Sins Aren't Counted (Halacha 5)

בשעה ששוקלין עוונות אדם עם זכויותיו, אין מחשבין עליו עוון שחטא בו תחילה ולא שני, אלא משלישי ואילך. אם נמצאו עוונותיו משלישי ואילך מרובין על זכויותיו, הרי אותן שתי עוונות מצטרפין ודנין אותו על הכל. ואם נמצאו זכויותיו כנגד עוונותיו אשר מעוון שלישי ואילך, מעבירין כל עוונותיו ראשון ראשון, שהשלישי נחשב ראשון, שכבר נמחלו השניים, וכן הרביעי הרי הוא ראשון, שכבר נמחל השלישי, וכן עד סופן

When a person's sins are weighed against his merits, the **first and second** time he committed a sin are **not counted**, only from the third onward. If, from the third onward, his sins outweigh his merits, the first two join in and he is judged on everything. But if his merits balance his sins from the third onward, **all his sins are passed over one by one**: the third counts as the first, since the first two were already forgiven; the fourth is the first, since the third was forgiven; and so on to the end.

"Ma'avir rishon rishon"

We say it again and again in Selichot: **אל מלך יושב על כסא רחמים... מוחל עוונות עמו, מעביר ראשון ראשון**. "I wonder how many people actually know what it means." *He passes them over, first, first.* Now you do.

The maths

Your overall standing	1st and 2nd time	3rd time onward
Merits ≥ sins (tzaddik or beinoni)	Not counted	Each repeat "becomes the first" and is wiped: **מעביר ראשון ראשון**
Sins > merits (rasha)	Not counted, until...	...from the 3rd, **all of them**, including the first two, are weighed

What's going on?

"This is from the Gemara." And it is good news for **perfectionists** who give up after one slip: humans are fallible.

Sins come from fragmentation. If you live an integrated life, aligned with your core, a sin is a break in that: "I was angry, I was tempted, I was weak." If you're good on the whole, each sin, even repeated, is a *fragment*, not who you are. But if your sins outweigh your merits, **this *is* your identity**, so from the third time it counts.

Not a free pass

Every individual sin still has consequences. "Are we going to say to someone who broke Shabbat once, with witnesses and warning, 'it's the first time, you're exempt'? No, of course not." **Yom Kippur** deals with individual sins. **The weighing** in this chapter is about **identity**, and there, if your values are aligned with Hashem's will, repeated lapses don't define you.

Question: isn't "generally a good person" subjective? **Hashem** decides. And "good" doesn't mean having a nice heart; it means **your value system is aligned with the will of Hashem**: tzaddik or beinoni, as opposed to rasha.

Community: three, not two

במה דברים אמורים? ביחיד, שנאמר: הן כל אלה יפעל אל פעמים שלוש עם גבר. אבל הציבור תולין להם עוון ראשון שני ושלישי, שנאמר: על שלושה פשעי ישראל ועל ארבעה לא אשיבנו

This is for an individual ("twice, three times with a man," Iyov). For a **community**, the first, second **and third** are held over ("for three transgressions of Israel, and for four I will not turn it back," Amos, the haftarah of Vayeshev), and counting begins from the fourth.

The beinoni and tefillin

בינונים, אם היה בכלל מחצה עוונות שלהן שלא הניח תפילין מעולם, דנין אותו כפי חטאו

Normally Hashem **tips the beinoni toward kindness** (*mateh kelapei chesed*) and the sins are passed over. **Exception:** if among his sins is that **he never once put on tefillin**, he is judged for everything. The Gemara: **קרקפתא דלא מנח תפילין**, "a head that never wore tefillin."

"To Chabad's credit, putting tefillin on people randomly is very valuable. Even if a person doesn't wear tefillin his entire life, **if he's worn it once**, he leaves this category."

Even the wicked have a share

וכן כל הרשעים שעוונותיהן מרובין, דנין אותן כפי חטאיהם, ויש להם חלק לעולם הבא, שכל ישראל יש להם חלק לעולם הבא... שנאמר: ועמך כולם צדיקים, לעולם יירשו ארץ, ארץ זו משל, כלומר ארץ החיים, והוא העולם הבא. וכן חסידי אומות העולם יש להם חלק לעולם הבא

Every Jew has a share, smaller and different for the wicked, but a share. "The land" is a metaphor for **the land of the living**, Olam HaBa. And **the righteous of the nations** have a share too.

Part 2: Why the Chapter Turns to "No Share in Olam HaBa" (Halacha 6)

Many commentators are troubled: Halachot 1–5 are all about the weighing; Halacha 6 suddenly lists those with **no share** in Olam HaBa. The simple link: having said even the wicked have a share, he lists the exceptions. The deeper link: **the whole chapter is about identity**, and **identity is fully realised in Olam HaBa**, where everything you built becomes your relationship with Hashem. Some identities are "so rotten to the core" that there is nothing left.

ואלו הן שאין להן חלק לעולם הבא, אלא נכרתים ואובדין ונדונין על גודל רשען וחטאתם לעולם ולעולמי עולמים

These have no share in the World to Come; they are **cut off**, they **perish**, and they are **judged** for the magnitude of their wickedness **forever and ever.**

The rotten apple

Purification comes through suffering in this world, or Gehinnom, "12 months maximum." Think of **an apple with bruises**: cut out each bad spot and there's still a core. The more bruises, the more cutting. But an apple **rotten to the core**? Cutting would remove everything, so you throw the whole apple away. That is **karet**: your identity ceases to exist.

Then why "judged forever"?

Someone asked, back when the class learned **Derech Hashem**: "I live a hundred years of debauchery, die, and cease to exist. How would I know I'm missing anything? I got a hundred years of enjoyment!"

The **Rambam**, the **Ramchal** and **Rav Kafich** all say: though the identity ceases, **an element remains that perceives what is missing, eternally.** Otherwise you'd have a system where you could do as you please with no worry. "That's scary."

Part 3: The 24 with No Share (Halachot 6–13)

המינים, והאפיקורוסין, והכופרים בתורה, והכופרים בתחיית המתים ובביאת הגואל, המורדים, ומחטיאי הרבים, והפורשים מדרכי ציבור, והעושה עבירות ביד רמה בפרהסיא כיהויקים, והמוסרים, ומטילי אימה על הציבור שלא לשם שמים, ושופכי דמים, ובעלי לשון הרע, והמושך ערלתו

Some headings contain several sub-types, making **24** in all.

Five *minim*

חמשה הן הנקראים מינים

#	Belief	Principle of faith denied
1	**There is no God**, no one runs the world	God's existence
2	There is one Ruler, but **with a body or form**	Incorporeality
3	There are **two or more** gods	Unity
4	God was **not first** and Former of all	Creation
5	**Serving an intermediary** (a star etc.) between oneself and God	Worship of God alone

These are the first five of the **13 Principles**.

in Pirkei **האומר**: "**Rav Kafich**: *says* means **declares**, a motto, like **הוא היה אומר one who says.**" Avot, "he used to say." Someone who **struggles** with doubts isn't included; "that happens, and that person needs to work on it."

- **Sources.** Each has a Gemara source: **אמר נבל בליבו אין אלהים** ("the fool said in his heart, there is no God"); Adam was created alone **שלא יאמרו שתי רשויות**, "so the minim wouldn't say there are two powers."
- **Except corporeality, for which there is *no* Gemara source.** The Monday class spent chapters of *Emunot VeDeot* Essay 2 proving that anthropomorphic verses are metaphors. But the **Ra'avad** objects: *why call this person a min? Many greater and better than him* read the verses literally. **This is the Rambam's own innovation.** His logic: **a God with a body isn't God.** "A God who sits on a throne in heaven with a long white beard... you may say you believe in God, but you don't." You can't have a relationship with such a thing.
- "It's not your fault?" **Rav Chaim of Brisk**: ***נעבעך אן אפיקורס איז אויך אן אפיקורס***, "a poor unfortunate heretic is still a heretic." Through no fault of his own, his understanding is too warped for a relationship with Hashem.
- **#4 "first and Former of all"**: by adding **וצור לכל**, the Rambam rejects not only **Aristotle** (an eternal world) but **Plato**: a pre-existing **hylē**, unformed matter, from which God made the world. Some Rishonim considered that acceptable; the Rambam says Hashem created **everything**, matter included.
- **Why *min*? Rav Moshe Shapira**: *min* means **species**, category. With such beliefs you are "a different category of human"; you have lost your identity as Israel.

"When we come to Yom Kippur, it's not just about our actions. It's also about our **outlook**. In fact it's probably more about our outlook than our actions."

Three *apikorsim*

#	Belief
6	**There is no prophecy** at all: no knowledge reaches people from God
7	**Denying the unique prophecy of Moshe**
8	God **doesn't know** what people do

- **Moshe's uniqueness** was a point the Rambam "really, really scored home," more than Rav Saadiah did, because in his time **Christianity and Islam** each claimed a newer revelation.

אפיקורוס has two meanings:

- Here: **Epicurus**, the Greek philosopher who denied any connection between God and humans. (The Rambam argues with him in the *Moreh*.)
- Elsewhere, from **הפקר**: someone who has thrown off every rein. That's how someone who **denigrates the Sages** is called an *apikores*.

Three *koferim baTorah*

#	Denial
9	That the Torah is from God, **even one verse, even one word**: "Moshe made it up himself"
10	Its **interpretation**, the Oral Torah, and **its transmitters** (like **Tzadok and Baitos**)
11	Saying God **replaced** the Torah with another, even if He gave it (as the Christians and Muslims claim)

- **Standing for the Ten Commandments:** the Rambam ruled against it in a responsum. It implies those words matter more than the rest, as if only they were from God. **Every word** is from God.
- **The two parts of the Oral Torah:** (1) what was **passed down** from Moshe; (2) what was left to the Sages to **interpret**. Once the Sanhedrin decided by majority, it binds. Hence the Mishnah's story of a sage who rejected the majority and whose **coffin was stoned** (the Rabbi recalled it as R. Eliezer ben Hyrcanus; in the Mishnah, Eduyot, it is Elazar ben Chanoch).

Two *meshumadim*

#	Type
12	**For one sin**: habitually doing one particular sin, e.g. always wearing **sha'atnez** or always cutting the **pe'ot**, **to rebel and anger God**
13	**For the whole Torah**: converting to another religion, e.g. in times of persecution: "why be with the persecuted Jews?"

- Why sha'atnez and pe'ot? "How much benefit are you getting?" The only reason is **"I don't want to do the will of God."**
- **Today:** someone who grew up never knowing these were forbidden "is a whole different discussion."
- **Mark:** what about conversos forced under the **Inquisition**? "You won't be considered a meshumad." Converting to Islam under duress? "Of course it's the wrong thing to do," but many say you needn't give your life for it, since it isn't actual idolatry.
- **Robert:** someone who believes in no God at all, "we live and then we're eaten by worms"? Not a meshumad (who *changes* faith), but **a min**.

The rest

#	Category	Explanation
14	**מחטיאי הרבים**, causing the public to sin	In big things (**Yeravam's** golden calves; **Tzadok and Baitos**) or **small**, even a positive mitzvah; forcing people (**Menasheh**); leading them astray (**Yeshu**). **Rav Kafich** found no Gemara source for "small things" and suggests the Rambam is codifying **Rav Saadiah Gaon** (*Emunot VeDeot*, Essay 5)
15	**הפורש מדרכי ציבור**, separating from the community	"Even without committing sins": not sharing their troubles, not fasting their fasts, "living like one of the nations." Difficulty: a source, and a contradiction with what the Rambam writes elsewhere (there, leaving *and* sinning). Read as: giving up **all** connection to Jewish identity
16	**העושה עבירות ביד רמה בפרהסיא כיהויקים**, sinning brazenly and in public	King **Yehoyakim** tattooed himself, wore sha'atnez, killed men and violated their wives, openly
17–18	**המוסרים**, two kinds of informers	Handing a Jew's **person** to non-Jews to be killed or beaten, or his **money** to be taken
19	**מטילי אימה על הציבור שלא לשם שמים**	A public figure (warden, official) who rules by fear for his own honour, not for Heaven
20	**שופכי דמים**	Murderers
21	**בעלי לשון הרע**	Habitual slanderers
22	**המושך ערלתו**	Surgically reversing one's circumcision
23–24	**הכופרים בתחיית המתים ובביאת הגואל**	Denying resurrection, or the coming of the Redeemer (Mashiach)

Robert: "cultural Jews"

Today many people don't keep Shabbat but are very involved in the community. **"Of course you won't fall under this category."** If you share in the community's troubles and joys, you are not *poresh*. A person who cares for his fellow Jews but believes "it's all Darwin" isn't poresh or an apostate either, "just a regular min."

Mesirah today

"This is why people are very reluctant to ever tell the police about another Jew." Many responsa explain that **the classic mesirah doesn't apply** in a democratic society under the rule of law, where Jews and non-Jews are, in theory, judged equally. The Sages' severity was about handing a Jew to a system where he'd be treated differently, to be killed, beaten or robbed.

Part 4: Lesser Sins Done Habitually (Halacha 14)

ויש עבירות קלות מאלו, ואף על פי כן אמרו חכמים שהרגיל בהן אין לו חלק לעולם הבא... המכנה שם לחבירו, והקורא לחבירו בכינויו, והמלבין פני חבירו ברבים, והמתכבד בקלון חבירו, והמבזה תלמידי חכמים, והמבזה רבותיו, והמבזה את המועדות, והמחלל את הקדשים

The Gemara says, e.g., **המלבין פני חבירו ברבים אין לו חלק לעולם הבא**: one who **shames another publicly** has no share. Why isn't it among the 24? **The Rambam's own reading:** the 24 are *identities*, philosophies, or blatant and constant public conduct. These are **lesser** sins; once is a mistake ("you do teshuvah, fine"). It's the **habitual** offender who loses his share.

Sin	Note
Giving someone a nickname, or calling him by one	Without his permission; even if you didn't invent it
Shaming someone in public	
Gaining honour from another's disgrace	People with low self-esteem can feel better seeing others brought down. "It happens here and there." Regularly is the problem
Disparaging Torah scholars, or one's teachers	
Disgracing the festivals	**Rabbeinu Menachem HaMeiri**: not dressing or eating differently; letting them pass unmarked
Profaning *kodashim*	

Part 5: Nothing Stands Before Teshuvah

במה דברים אמורים שכל אחד מאלו אין לו חלק לעולם הבא? כשמת בלא תשובה. אבל אם שב מרשעו ומת והוא בעל תשובה, הרי זה מבני העולם הבא, שאין לך דבר שעומד בפני התשובה. אפילו כפר בעיקר כל ימיו ובאחרונה שב, יש לו חלק לעולם הבא, שנאמר: שלום שלום לרחוק ולקרוב... כל הרשעים והמומרים וכיוצא בהן שחזרו בתשובה, בין בגלוי בין במטמוניות, מקבלין אותן

All this applies only **if he died without teshuvah**. If he repented, he has a share, for **nothing stands before teshuvah**. Even if he denied the fundamentals all his life and repented at the end: "Peace, peace to the far and to the near." All who return, **openly or in secret**, are accepted.

Even someone who has come back privately but not yet publicly: "we take you on and we encourage you."

Aldous Huxley, an atheist writer of the 20th century, wrote late in life that he and others had *wanted* there to be no Creator, because a Creator would bring moral consequences, and he later changed his mind. "If at the end of his life he recognised Hashem, it's a different story. A person can always do teshuvah."

Summary

1. **The first and second** occurrences of a sin are never weighed. If your merits hold, every repeat "becomes the first" and is passed over: **מעביר ראשון ראשון**. Sins are fragmentation, not identity, unless they *are* your identity.
2. Individual sins still carry consequences; this weighing is about **who you are**.
3. A **community** gets three, not two. **Tefillin**, even once, matters enormously.
4. **Every Jew** has a share in Olam HaBa, and so do the **righteous of the nations**.
5. The **24** without a share are identities rotten to the core: **5 minim, 3 apikorsim, 3 koferim baTorah, 2 meshumadim**, and the rest. Karet is the apple thrown away, though something remains that knows its loss.
6. **Corporeality as heresy** is the Rambam's own innovation: a God with a body isn't God.
7. **Lesser sins done habitually** (nicknames, public shaming, disgracing the festivals…) also forfeit Olam HaBa.
8. **Nothing stands before teshuvah.**

"These are the big things we need to be thinking about before we do teshuvah, not just 'I did this, I did that.'"

Coming Up

"I was over-ambitious, I have to admit," hoping to finish all ten chapters by Yom Kippur. "We've got another 7 chapters to do. The rest are not as hard," but there's a lot to talk about. **Next: Chapter 4**, the 24 impediments to teshuvah.

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